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California Democrats pass state tax on guns and ammunition after nearly a decade of attempts

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California lawmakers will send a state excise tax on guns and ammunition to Gov. Gavin Newsom after years of failed attempts by Democratic legislators.

The Senate voted 27-9 on Thursday to approve Assembly Bill 28, which would require manufacturers, vendors and dealers to pay an 11% tax on guns and ammunition to fund violence prevention efforts. The bill passed with exactly the two-thirds threshold needed for approval of a tax.

Gun and ammunition-sellers would pay the new state tax on top of the 10 to 11% federal excise tax they already pay to fund wildlife conservation efforts.

Assemblyman Jesse Gabriel, D-Woodland Hills, authored the bill after former Assemblyman Marc Levine, D-San Rafael, failed multiple times to get excise tax bills through the Legislature.

Prior to Levine's attempts, at least three other lawmakers had pushed similar taxes on guns and ammunition since 2013. Gabriel's bill was the first of its kind to pass out of the Assembly.

When the assemblyman first put the bill forward, there were questions about whether it was "in the realm of possibility," he said after the Senate vote.

"I introduced this bill at the very beginning of session," Gabriel said. "A few weeks later, we have mass shootings in Half Moon Bay and in Monterey Park and in all these places."

"Frankly, I think part of the reason the bill passed is the public is demanding this of us," he added. "They are demanding that we have more solutions that will do more to protect their kids, to protect their communities."

Lawmakers debate tax effectiveness

Many senators on Thursday cited their children and grandchildren and school safety concerns in their arguments for backing the bill. Floor debate lasted for about an hour before lawmakers voted.

Sen. Angelique Ashby, D-Sacramento, urged her colleagues to support AB 28 as a "mechanism to address gun violence." She made her plea in the name of her school-age daughter and California children, as well as Amber Clark, a Natomas librarian who was fatally shot in 2018.

"Like so many Americans, I do hug my little daughter each morning as I drop her off at school," Ashby said. "And as I drive away, I push out of my mind the unthinkable. Otherwise, it would be impossible for me to face the tasks I'm responsible for every day."

But Republicans, and a handful of Democrats, said the tax would do little to prevent gun violence, and retailers would pass on the added cost on to customers. In this way, it would penalize law-abiding firearm owners, hunters and students taking part in shooting sports, they said.

"When you add another 11% on, all it's going do is decrease the number of hunters," said Sen. Bill Dodd, D-Napa. "Sooner or later, this will be like the tobacco tax. And sooner or later, this money's going to go down, down, down."

Gun control groups cheered AB 28's passage and urged Newsom to sign it.

“This bill is an innovative approach in tackling gun violence and a crucial step to improve the safety of all California families,” said Cassandra Whetstone, a volunteer with the California chapter of Moms Demand Action for Gun Sense in America, in a statement.

Gun rights advocates said they plan to sue the state over the legislation if the governor makes it law.

“The passage of this bill will be seen for what it is ... an unconstitutional tax on an enumerated right,” said Rick Travis, legislative director for the California Rifle and Pistol Association, in an email.

The measure now heads to Newsom, who must sign or veto bills by Oct. 14.

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